

MEMORANDUM OF UNDERSTANDING

between

the United Nations

and

the Qatar Foundation for Education, Science and Community Development

This Memorandum of Understanding ("MoU" or "Memorandum") is hereby entered into by the United Nations, an international intergovernmental organization, established by its Member States pursuant to the Charter of the United Nations signed in San Francisco on 26 June 1945 and having its Headquarters in New York, New York 10017, U.S.A., (the "United Nations" or the "UN"), represented by the Office for the Coordination of Humanitarian Affairs ("OCHA"), and the Qatar Foundation for Education, Science and Community Development, a private institution for public benefit established under Law 21 of 2006, represented by the Qatar Computing Research Institute, having its principal place of business at PO Box 5825 Education City, Doha, Qatar ("QCRI") (jointly referred to as the "Parties" and individually as a "Party").

The purpose of this Memorandum is to establish a strategic framework of cooperation between the Parties, based on the following considerations:

Wishing to exchange information and collaborate in the field of humanitarian technologies and systems within the framework of their respective mandates and in accordance with their respective goals and objectives, as contemplated in the Letter of Understanding between the State of Qatar and OCHA, signed on 5 April 2012;

Governed by the norms and principles enshrined in the Charter of the United Nations;

Recognizing that QCRI is an innovation centre based in Doha, Qatar, for advanced computing research, development and prototyping, approaching problems through the lens of crowd computing and machine computing, and that its Social Innovation Strategy has been developed to apply QCRI's expertise to address and positively impact major humanitarian and development challenges around the world;

Recognizing that OCHA is an office of the United Nations responsible for bringing together humanitarian actors to ensure a coherent response to emergencies, and coordinating effective and principled humanitarian action in partnership with national and international actors in order to alleviate human suffering in disasters and emergencies;

Recognizing the importance of efficient coordinated activities and information sharing, and the desirability of the Parties' cooperation within their respective mandates, in the area of humanitarian technologies and systems.

The Parties have agreed as follows:

Article 1

Purpose and scope of the Memorandum

The Parties will cooperate in the following areas within their respective mandates:

a) **Technical initiatives:** The purpose of cooperation between the Parties in the area of technical initiatives is to identify needs, define scope, outline requirements, develop solutions, enable testing and implementation, and promote the wide adoption of next-generation technical solutions in the area of humanitarian action and humanitarian response. For this purpose, the Parties will:

- i. Identify potential areas where emerging technology could be used to augment humanitarian response;
- ii. Pursuant to the research initiatives developed under Section 1.b hereof, develop technical solutions suitable to process big (crisis) data that will augment existing products or processes within the humanitarian community, such as Artificial Intelligence for Disaster Response (AIDR), MicroMappers (Microtasking applications for disaster response), and Disaster Tweets Policy Analysis, developed by QCRI and supported by OCHA;
- iii. Hold regular meetings, not less than once per year, to discuss both strategic and technical topics related to the technical solutions being developed under this Section 1.a of the Memorandum; and
- iv. Readily respond and adapt to the technological change in the area of humanitarian technologies and systems.

For purpose of this Section 1.a, OCHA will

- i. Provide guidance and testing environment for the jointly developed technical solutions; and
- ii. Provide appropriate internal and external promotional support for the jointly developed technical solutions, subject to Article 4 hereof.

b) **Research initiatives:** The purpose of cooperation between the Parties in the area of research initiatives is to develop and implement a number of jointly defined research projects focused on various aspects of information management processes and systems related to humanitarian affairs. For this purpose, the Parties will

- i. Identify mutually beneficial areas of research with the aim of benefitting the wider humanitarian community, including in particular research in relation to big (crisis) data, natural language processing, and microtasking;
- ii. Readily respond and adapt to any changes in the humanitarian and technology landscape; and
- iii. Facilitate access to relevant humanitarian experts in various stages of the research initiatives.

c) **Events organized by OCHA:** The Parties will bring advanced research and technical knowledge into ongoing Humanitarian Policy Dialogue and the World Humanitarian Summit events organized by OCHA. For this purpose, OCHA will collaborate with QCRI to ensure that matters of research and technology are integrated, to the extent possible, into events organized by OCHA.

d) **Events organized by QCRI and co-organized events:** The Parties will work together to bring leading experts in the area of humanitarian affairs, systems and technologies to discuss the demands of humanitarian information-gathering and technological solutions and formulate concrete action plans for the future. For this purpose and to the extent possible, the Parties will hold a humanitarian information and technology innovation symposium in 2015, provided the availability of sufficient funds and subject to Section 2.6 hereof. Subject to the terms of this Memorandum, as well as the availability of sufficient funds, OCHA will participate in events co-sponsored by QCRI, such as the international CrisisMappers conference series.

e) **Capacity development and knowledge exchange:** The Parties will cooperate to ensure the exchange of knowledge and expertise by facilitating exchange of their respective officers at the Headquarters, regional and field levels on a short-term basis and, where appropriate and financially feasible, on a long-term basis. The Parties will also explore the possibilities and, if appropriate, conclude the necessary agreements for QCRI to provide assistance to OCHA Data Labs, if funded and launched, and OCHA Information Management ("IM") teams in emergencies, in order to both support OCHA activities and improve the ongoing QCRI work.

Article 2

Implementation of the Memorandum

1. The cooperation and interaction between the Parties will be implemented in compliance with the commonly recognized principles and norms of international law, including the norms and principles enshrined in the Charter of the United Nations.
2. The Parties recognize that this Memorandum of Understanding is not intended to interfere with each Party's right to carry out its own mandated activities.
3. The Parties will disseminate the content of this Memorandum of Understanding to their respective field and regional offices as well as their respective units at Headquarters to raise awareness.
4. The Parties will consult with each other with respect to coordinating and improving their cooperation and interaction envisaged in this Memorandum, as appropriate. The Parties will undertake a joint review of their cooperation, no later than within eighteen (18) months prior to the expiry of the first thirty-six-month term of this Memorandum.
5. The Parties may recommend other areas and forms of cooperation based on the experience gained in the course of implementation of this Memorandum.
6. The Parties will conclude separate agreements for specific projects to be implemented pursuant to this Memorandum, addressing, *inter alia*, the issues concerning the ownership of intellectual property, confidentiality of documents and information, indemnification, dispute settlement and financial arrangements.

Article 3

Relationship between the Parties and financial obligations

1. This Memorandum sets out a general framework for cooperation between the Parties and does not obligate either Party to provide any funds for the other Party. In performing any responsibilities or engaging in any acts under this Memorandum, each Party will bear its own costs. Nothing in this Memorandum will obligate either of the Parties to appropriate funds or enter into any contract, agreement or other obligation except as set forth in this Memorandum or as they may mutually agree in writing.
2. The Parties will not undertake any actions, incur any expenses or make any commitments, financial or otherwise, which would be inconsistent with the respective Party's regulations, rules, policies and procedures, including, as necessary, the approval of their internal governing bodies. It is understood that the implementation of any of the types of cooperation stated in Article 1, above, may be restricted depending upon the availability of resources and financial support.

3. In the case of contributions made by one Party to the other Party in support of particular activities under this Agreement, appropriate financing arrangements shall be established in writing, specifying the costs or expenses relating to the activity and how they are to be borne by the Parties. Such agreements shall also include a provision incorporating by reference, this Memorandum.

4. Nothing in this Memorandum shall create any partnership or joint venture between the Parties. The Parties hereby recognize that the collaboration under this Agreement is non-exclusive.

Article 4

Use of UN name and emblem

1. Any use of the United Nations name, including any abbreviation thereof, and the United Nations emblem by QCRI in connection with the cooperation under this Memorandum shall be subject to the express prior written approval of the United Nations. Under no circumstances shall authorization be granted to use the name or emblem of the United Nations for commercial purposes.

2. QCRI acknowledges that it is familiar with the UN and its purposes and principles and recognizes that the UN name and emblem may not be associated with any political or sectarian cause or otherwise used in a manner inconsistent with the status, reputation and neutrality of the United Nations.

3. The Parties agree to recognize and acknowledge their collaboration under this Memorandum of Understanding, as appropriate. To this end, the Parties shall consult with each other concerning the manner and form of such recognition and acknowledgement.

Article 5

Confidentiality

1. The Parties undertake to keep confidential any information, document or other material communicated to them as confidential, until, or unless, (i) a prior written authorization has been provided by the disclosing Party, (ii) the content has legitimately become available to the public through third parties or through work or actions legitimately performed by the receiving Party outside the scope of this Memorandum of Understanding and beyond the activities under this Memorandum of Understanding; or (iii) the content has been made available to the receiving Party by a third party without any confidentiality restrictions.

2. The obligations and restrictions of confidentiality in Section 5.1 above shall remain in effect following the expiry or any termination of this Memorandum of Understanding. Either Party may disclose confidential information under this Memorandum to the extent required by any applicable law or by the governing body or bodies of that Party.

Article 6

Intellectual property

1. This Memorandum does not delegate or transfer either Party's intellectual property rights to the other Party. Unless otherwise provided in specific agreements to be concluded pursuant to Section 2.6 above, each Party shall maintain ownership and control of its intellectual property rights.

2. It is envisioned that, to the extent possible, the initiatives developed by the Parties pursuant to this Memorandum will be open and accessible in nature. The Parties will collaborate, where appropriate, to find ways for making any software or computer code developed pursuant to this Memorandum available for the public good.

Article 7

Settlement of disputes

Any dispute between the United Nations and QCRI arising out of the implementation and interpretation of this Memorandum will be settled between the Parties through consultations and negotiations.

Article 8

Privileges and Immunities of the UN

Nothing in or relating to the Memorandum shall be deemed a waiver, express or implied, of any of the privileges and immunities of the United Nations, including its subsidiary organs.

Article 9

Communications

All communications between the parties will be carried out through or with a copy to the following designated coordinators:

- For QCRI:

Patrick Meier, PhD
Director, Social Innovation at QCRI
Mobile: +1 617 771 7914
Email: pmeier@qf.org.qa

- For OCHA:

Craig Williams
Chief, Field Information Services section (FIS)
Information Services Branch (ISB)/OCHA
Tel: +41 22 917 4139
Mobile: +41 79 444 4139
Email: williamscv@un.org

Article 10

Term, termination and amendment

1. This Memorandum shall be valid for a period of three (3) years from the date of signature by both Parties (the "effective date"), unless sooner terminated by either Party by giving ninety (90) days' written notice to the other Party. Where written notice of termination of this Memorandum is given, the Parties will take immediate steps to bring all joint activities to a close in a prompt and orderly manner. The Parties will have an option to extend the term of this Memorandum by mutual agreement and upon undertaking a review of the results of their cooperation.

2. This Memorandum may be amended by mutual agreement of the Parties in writing.

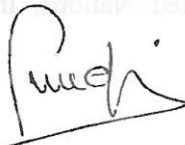
Article 11**Effective date**

This Memorandum shall enter into force upon signature by both Parties.

In witness hereof, the authorized representatives of the Parties have signed this Memorandum on the dates appearing under their respective signatures.

**For the Qatar Foundation for Education,
Science and Community Development,
Qatar Computing Research Institute
(QCRI)**

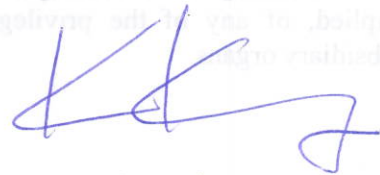
For the United Nations



By: Dr Ahmed Elmagarmid / Dr Abdellatif
Saoudi

Title: Executive Director, QCRI / Managing
Director QCRI

Date: 21 / AUG / 2014



By: Kyung-wha Kang

Title: Assistant Secretary-General for
Humanitarian Affairs and Deputy
Emergency Relief Coordinator

Date: 17 September 2014